

SUPREME COURT OF THE STATE OF NEW YORK Filed:
COUNTY OF QUEENS-----X
DEBORAH F. TAYLOR,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER "JOHN" WILLIAMS,
POLICE OFFICER "JOHN DOE" (names intended to be
fictitious where indicated) and DETECTIVE JOSEPH
ZAPPIA,Defendant(s).
-----X

To the above named Defendant(s)

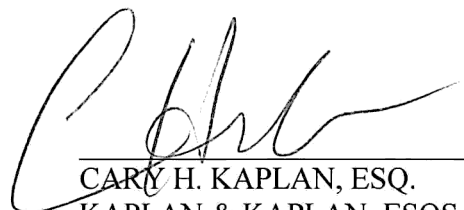
Index No.:

Plaintiff designates Queens
County as place of trialThe basis of venue is
County of arrest**SUMMONS**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
August 14, 2018

Defendant(s)' address(es):

Defendant CITY OF NEW YORK
100 Church Street
New York, NY 10007Defendant NYC POLICE DEPARTMENT
100 Church Street
New York, NY 10007Defendant P.O. "JOHN" WILLIAMS
100 Church Street
New York, NY 10007Defendant DETECTIVE JOSEPH ZAPPIA
100 Church Street
New York, NY 10007
CARY H. KAPLAN, ESQ.
KAPLAN & KAPLAN, ESQS.
Attorneys for Plaintiff(s)
16 Court St.-Suite 2305
Brooklyn, New York 11241
(718) 596-8800

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DEBORAH F. TAYLOR,

Index No.:

Plaintiff(s),

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
"JOHN" WILLIAMS, POLICE OFFICER
"JOHN DOE" (names intended to be fictitious
where indicated) and DETECTIVE JOSEPH
ZAPPIA,

Defendant(s).
-----X

Plaintiff, by her attorneys, KAPLAN & KAPLAN, ESQS., complaining of the
defendant(s), respectfully alleges, upon information and belief, as follows:

PARTIES

1. That, at all times herein mentioned, plaintiff was a resident of the County of Queens, City and State of New York.
2. That, at all times herein mentioned, plaintiff was and is a citizen of the United States of America, entitled to the full protection of the laws and the Constitution of the United States of America.
3. That at all times hereinafter mentioned the defendant, CITY OF NEW YORK (hereinafter "CITY"), was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That, at all times herein mentioned, defendant NEW YORK CITY POLICE

DEPARTMENT (hereinafter "NYPD") was, and still is a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

5. That, at all times herein mentioned, defendant NYPD was, and still is a sub-division of the defendant CITY.

6. That, Notice of Claim, in duplicate, upon which the within action is founded, was served upon the municipal defendant(s) by their agent designated for receipt of same, within ninety (90) days of the occurrence.

7. That, more than thirty (30) days have elapsed since the claim was presented for adjustment, and municipal defendant(s) have neglected or refused to make an adjustment or payment thereon.

8. That, this action was commenced within one (1) year from the date of the dismissal.

9. That, a 50H hearing was duly held by defendants and plaintiff duly testified and submitted to an examination, pursuant to the Statute.

10. That, at all times herein mentioned, defendant NYPD, its agents, servants and employees, was maintained, supervised, managed, operated and/or controlled by defendant CITY.

11. That, at all times herein mentioned, defendant POLICE OFFICER "JOHN" WILLIAMS was a sworn law enforcement officer/agent of the NYPD, and was acting under the supervision of the NYPD, and was acting according to official duties.

12. That, at all times herein mentioned, defendant POLICE OFFICER "JOHN DOE" was a sworn law enforcement officer/agent of the NYPD, and was acting under the supervision of the NYPD, and

was acting according to official duties.

13. That, at all times herein mentioned, defendant DETECTIVE JOSEPH ZAPPIA was a sworn law enforcement officer/agent of the NYPD, and was acting under the supervision of the NYPD, and was acting according to official duties.

14. That, each and all of the acts of the defendant POLICE OFFICER "JOHN" WILLIAMS alleged herein were done while acting within the scope of his employment by defendant CITY.

15. That, each and all of the acts of the defendant POLICE OFFICER "JOHN DOE" alleged herein were done while acting within the scope of his employment by defendant CITY.

16. That, each and all of the acts of the defendant DETECTIVE JOSEPH ZAPPIA alleged herein were done while acting within the scope of his employment by defendant CITY.

17. That, each and all of the acts of the defendant POLICE OFFICER "JOHN" WILLIAMS alleged herein were done while acting within the scope of his employment by defendant NYPD.

18. That, each and all of the acts of the defendant POLICE OFFICER "JOHN DOE" alleged herein were done while acting within the scope of his employment by defendant NYPD.

19. That, each and all of the acts of the defendant DETECTIVE JOSEPH ZAPPIA alleged herein were done while acting within the scope of his employment by defendant NYPD.

20. That, at all times herein mentioned, the defendant(s), either personally or through their agents, servants and/or employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the City of New York.

FACTS

21. That, on 10/13/16, at approximately 10 a.m., plaintiff was at or near Beach 40th Street and Beach Channel Drive, in the County of Queens, City and State of New York.

22. That, plaintiff was approached by several of defendant(s)' police officers/agents, including defendant POLICE OFFICER "JOHN" WILLIAMS.

23. That, defendant POLICE OFFICER "JOHN" WILLIAMS directed plaintiff to stop walking because they had a warrant against her.

24. That, there was, in fact, no such warrants.

25. That, plaintiff said defendant(s) advised that there were no such warrants against her.

26. That, upon information and belief, POLICE OFFICER "JOHN" WILLIAMS' claim that there was a warrant against plaintiff was a complete fabrication.

27. That, another police officer, defendant POLICE OFFICER "JOHN DOE" unlawfully, wrongfully, willfully, intentionally handcuffed plaintiff against her will, without permission, consent, probable cause, authority or privilege.

28. That defendant(s)' said law enforcement officers/agents unlawfully, wrongfully, willfully, intentionally and without proper cause or provocation, forced plaintiff into a police van with nine other male police officers, against her will and without probable cause.

29. That, while still in handcuffs, plaintiff was then unlawfully and wrongfully transported against her will to the 101st Precinct, without permission, consent, probable cause, authority or privilege.

30. That, while at the 101st Precinct, plaintiff was unlawfully and wrongfully, falsely arrested/booked.

31. That, while at the 101st Precinct, plaintiff was unlawfully and wrongfully, searched, without permission, consent, probable cause, authority or privilege.

32. That, while at the 101st Precinct, plaintiff was unlawfully and wrongfully, photographed, without permission, consent, probable cause, authority or privilege.

33. That, while at the 101st Precinct, plaintiff was unlawfully and wrongfully, finger printed, without permission, consent, probable cause, authority or privilege.

34. That, while at the 101st Precinct, plaintiff was unlawfully and wrongfully, placed in a cell for approximately ten hours, without permission, consent, probable cause, authority or privilege.

35. That plaintiff, a female, was improperly placed in a cell with a male prisoner.

36. That, upon information and belief, said male prisoner was being held for violent, domestic abuse charges.

37. That, holding plaintiff, a female, in a cell with a male, violent, domestic abuser was improper and put plaintiff in fear of her personal safety.

38. That, plaintiff was brought into a room by defendant DETECTIVE JOSEPH ZAPPIA.

39. That, defendant DETECTIVE JOSEPH ZAPPIA interrogated plaintiff with regard to an alleged assault that purportedly occurred on 8/4/16.

40. That, plaintiff had nothing to do with any such alleged assault.

41. That, defendant(s) had no basis to believe that plaintiff had anything to do with such an assault.

42. That, plaintiff was never read her Miranda rights.

43. That, plaintiff was never allowed to make a telephone call.

44. That, plaintiff was never permitted to speak to an attorney.

45. That, at approximately 11:35 p.m., plaintiff was unlawfully and wrongfully transported against her will to Central Booking, without permission, consent, probable cause, authority or privilege.

46. That, at Central Booking, plaintiff was unlawfully and wrongfully photographed, without permission, consent, probable cause, authority or privilege.

47. That, at Central Booking, plaintiff was unlawfully and wrongfully retina scanned, without permission, consent, probable cause, authority or privilege.

48. That, at Central Booking, plaintiff was unlawfully and wrongfully confined to a cell for approximately ten hours.

49. That, plaintiff was released on her own recognizance.

50. That, plaintiff was maliciously prosecuted for several months and forced to make eight additional court appearances without permission, consent, probable cause, authority or privilege.

51. That, on 9/20/17, all charges against claimant were dismissed.

52. That, the aforesaid defendant law enforcement officer/agent wrongfully and unlawfully filled out and filed false and misleading police reports and legal instruments in connection with plaintiff's arrest.

53. That, said defendant law enforcement officer/agent wrongfully and unlawfully gave false and misleading testimony, evidence and/or information regarding the facts and circumstances of plaintiff's arrest.

54. That, as a result of the wrongful, unlawful, perjurious and fraudulent conduct of said defendant(s), plaintiff was unlawfully and wrongfully fingerprinted, detained, searched, and falsely arrested and imprisoned, without permission, consent, probable cause, authority or privilege.

55. That, as a result of the foregoing, plaintiff sustained, and continues to sustain, *inter alia*, loss of liberty, emotional distress, personal, psychological and bodily injuries, mental anguish, shock, fright, apprehension, severe humiliation and embarrassment, damage to her reputation and occupation, and deprivation of her Civil and Constitutional Rights.

56. That, the foregoing was due to the willfulness, unlawfulness, negligence and/or

carelessness of the defendants, their agents, servants and/or employees in the operation, management, maintenance, supervision and control of said police department, and negligent hiring and/or retention of the aforesaid defendant officer(s), without any culpable conduct on the part of the plaintiff herein.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. SECTION 1983

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number "1" through "56" with the same force and effect as if fully set forth herein.

58. All of the aforementioned acts of defendants, their agents, servants and/or employees, were carried out under the color of law.

59. All of the aforementioned acts of the defendants, their agents, servants and/or employees, deprived plaintiff of rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. Section 1983.

60. The acts complained of were carried out by the aforementioned defendant law enforcement officer/agent in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

61. The acts complained of were carried out by the aforementioned defendant law enforcement officer/agents in their capacities as law enforcement officer agents, pursuant to the customs, usages, practices, procedures, and rules of the defendant(s), and under the supervision of ranking officers and/or officials.

62. Defendant(s), collectively and individually, while acting under color of state law, engaged in conduct, which constituted defendants(s)' customs, usages, practices, procedures or rules, in

violation of the Constitution of the United States.

63. That, as a result of the foregoing, plaintiff sustained, and continues to sustain, *inter alia*, loss of liberty, emotional distress, personal, psychological and bodily injuries, mental anguish, shock, fright, apprehension, severe humiliation and embarrassment, damage to her reputation and occupation, and deprivation of her Civil and Constitutional Rights, plaintiff's liberty was restricted for an extended period of time, and she was put in fear for personal safety, was humiliated and subjected to handcuffing, and other physical restraints, was falsely and maliciously prosecuted and subjected to abuse of process, without permission, consent, probable cause, authority or privilege.

64. That, the foregoing was due to the willfulness, unlawfulness, negligence and/or carelessness of the defendants, their agents, servants and/or employees in the operation, management, maintenance, supervision and control of said police department, and negligent hiring and/or retention of the aforesaid defendant law enforcement officer(s)/agent(s), without any culpable conduct on the part of the plaintiff herein.

65. As a result of the foregoing, plaintiff is entitled judgement against defendant(s) for damages in a sum exceeding the monetary jurisdiction of all lower courts, individually and collectively, and demands judgment against defendant(s) commensurate with same.

AS AND FOR A SECOND CAUSE OF ACTION
FALSE ARREST UNDER 42 U.S.C. SECTION 1983

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "65" with the same force and effect as if fully set forth herein.

67. As a result of defendant(s)' aforementioned conduct, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely

imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without any probable cause, privilege or consent.

68. That, as a result of the foregoing, plaintiff sustained, and continues to sustain, *inter alia*, loss of liberty, emotional distress, personal, psychological and bodily injuries, mental anguish, shock, fright, apprehension, severe humiliation and embarrassment, damage to her reputation and occupation, and deprivation of her Civil and Constitutional Rights, plaintiff's liberty was restricted for an extended period of time, and she was put in fear for personal safety, was humiliated and subjected to handcuffing, and other physical restraints, was falsely and maliciously prosecuted and subjected to abuse of process, without permission, consent, probable cause, authority or privilege.

69. That, the foregoing was due to the willfulness, unlawfulness, negligence and/or carelessness of the defendants, their agents, servants and/or employees in the operation, management, maintenance, supervision and control of said police department, and negligent hiring and/or retention of the aforesaid defendant law enforcement officers/agents, without any culpable conduct on the part of the plaintiff herein.

70. As a result of the foregoing, plaintiff is entitled judgement against defendant(s) for damages in a sum exceeding the monetary jurisdiction of all lower courts, individually and collectively, and demands judgment against defendant(s) commensurate with same.

AS AND FOR A THIRD CAUSE OF ACTION
MALICIOUS PROSECUTION UNDER 42 U.S.C. SECTION 1983

71. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number "1" through "70" with the same force and effect as if fully set forth herein.

72. Defendant(s) misrepresented and falsified evidence to the District Attorney and/or

the Court and/or the Grand Jury.

73. Defendant(s) did not make a complete and full statement of facts to the District Attorney and/or the Court and/or the Grand Jury.

74. Defendant(s) withheld exculpatory evidence from the District Attorney and/or the Court and/or the Grand Jury.

75. Defendant(s) were directly and actively involved in the initiation of criminal proceedings against plaintiff.

76. Defendant(s) lacked probable cause to initiate criminal proceedings against plaintiff.

77. Defendant(s) acted with malice in initiating criminal proceedings against plaintiff.

78. Defendant(s) were directly and actively involved in the continuation of criminal proceedings against plaintiff after defendant(s) knew, or should have known, that there was no cause, just, probable or otherwise, to continue same.

79. Defendant(s) lacked probably cause to continue criminal proceedings against plaintiff.

80. Defendant(s) misrepresented and falsified evidence throughout the criminal proceedings.

81. That, as a result of the foregoing, plaintiff sustained, and continues to sustain, *inter alia*, loss of liberty, emotional distress, personal, psychological and bodily injuries, mental anguish, shock, fright, apprehension, severe humiliation and embarrassment, damage to her reputation and occupation, and deprivation of her Civil and Constitutional Rights, plaintiff's liberty was restricted for an extended period of time, and she was put in fear of personal safety, was humiliated and subjected to handcuffing, and other physical restraints, was falsely and maliciously prosecuted and subjected to abuse of process, without permission, consent, probable cause, authority or privilege.

82. That, the foregoing was due to the willfulness, unlawfulness, negligence and/or carelessness of the defendant(s), their agents, servants and/or employees in the operation, management, maintenance, supervision and control of said police department, and negligent hiring and/or retention of the aforesaid defendant law enforcement officers/agents, without any culpable conduct on the part of the plaintiff herein.

83. As a result of the foregoing, plaintiff is entitled judgement against defendant(s) for damages in a sum exceeding the monetary jurisdiction of all lower courts, individually and collectively, and demands judgment against defendant(s) commensurate with same.

AS AND FOR A FOURTH CAUSE OF ACTION
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. SECTION 1983

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "83" with the same force and effect as if fully set forth herein.

85. Defendant(s) issued legal process to place plaintiff under arrest.

86. Defendant(s) issued legal process and arrested plaintiff in order to obtain a collateral objective outside the legitimate ends of legal process.

87. Defendant(s) acted with intent to do harm to plaintiff, without excuse or justification.

88. That, as a result of the foregoing, plaintiff sustained, and continues to sustain, *inter alia*, loss of liberty, emotional distress, personal, psychological and bodily injuries, mental anguish, shock, fright, apprehension, severe humiliation and embarrassment, damage to her reputation and occupation, and deprivation of her Civil and Constitutional Rights, plaintiff's liberty was restricted for an extended period of time, and she was put in fear for personal safety, was humiliated and subjected to handcuffing, and other physical restraints, was falsely and maliciously prosecuted and subjected to abuse of process, without

permission, consent, probable cause, authority or privilege.

89. That, the foregoing was due to the willfulness, unlawfulness, negligence and/or carelessness of the defendant(s), their agents, servants and/or employees in the operation, management, maintenance, supervision and control of said police department, and negligent hiring and/or retention of the aforesaid defendant law enforcement officer/agent, without any culpable conduct on the part of the plaintiff herein.

90. As a result of the foregoing, plaintiff is entitled judgement against defendant(s) for damages in a sum exceeding the monetary jurisdiction of all lower courts, individually and collectively, and demands judgment against defendant(s) commensurate with same.

AS AND FOR A FIFTH CAUSE OF ACTION
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. SECTION 1983

91. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "90" as if the same were more fully set forth at length herein.

92. Defendant(s) created and/or gave false and/or misleading and/or incomplete evidence against plaintiff.

93. Defendant(s) provided false and/or misleading and/or incomplete evidence to prosecutors and/or the Court, and/or the Grand Jury.

94. Defendant(s) misled the Grand Jury, and/or the prosecutors, and/or the Court, by creating/giving false and/or misleading and/or incomplete evidence against plaintiff.

95. Defendant(s) thereafter provided false and/or misleading and/or incomplete testimony throughout the criminal proceedings.

96. Defendant(s) violated plaintiff's Constitutional Right to a fair trial under the Due

Process Clauses of the Fifth and Fourteenth Amendments of the United States Constitution, in creating and/or giving false and/or misleading and/or incomplete evidence against plaintiff to prosecutors, and/or the Grand Jury, and/or the Court.

97. That, as a result of the foregoing, plaintiff sustained, and continues to sustain, *inter alia*, loss of liberty, emotional distress, personal, psychological and bodily injuries, mental anguish, shock, fright, apprehension, severe humiliation and embarrassment, damage to her reputation and occupation, and deprivation of her Civil and Constitutional Rights, plaintiff's liberty was restricted for an extended period of time, and she was put in fear for personal safety, was humiliated and subjected to handcuffing, and other physical restraints, was falsely and maliciously prosecuted and subjected to abuse of process, without permission, consent, probable cause, authority or privilege.

98. That, the foregoing was due to the willfulness, unlawfulness, negligence and/or carelessness of the defendant(s), their agents, servants and/or employees in the operation, management, maintenance, supervision and control of said police department, and negligent hiring and/or retention of the aforesaid defendant law enforcement officer/agent, without any culpable conduct on the part of the plaintiff herein.

99. As a result of the foregoing, plaintiff is entitled judgement against defendant(s) for damages in a sum exceeding the monetary jurisdiction of all lower courts, individually and collectively, and demands judgment against defendant(s) commensurate with same.

AS AND FOR A SIXTH CAUSE OF ACTION
MUNICIPAL LIABILITY

100. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "99" as if the same were more fully set forth at length herein.

101. Defendant(s) arrested and incarcerated plaintiff despite the absence of any evidence of criminal wrongdoing.

102. Defendant(s) arrested and incarcerated plaintiff despite the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would deprive plaintiff of his liberty, well-being, safety and Civil and Constitutional Rights.

103. Defendant(s) arrested and/or incarcerated plaintiff despite being in possession of exculpatory evidence that demonstrated the innocence of plaintiff.

104. Defendant(s) arrested and/or incarcerated plaintiff despite being in possession of exculpatory evidence that demonstrated the innocence of plaintiff, notwithstanding their knowledge that said arrest and incarceration would deprive plaintiff of her liberty, well-being, safety and Civil and Constitutional Rights.

105. The acts complained of herein were carried out by the aforementioned defendant law enforcement officer/agent in their capacities as law enforcement officers/agents and/or officials, with all the actual and/or apparent authority attendant thereto.

106. The acts complained of herein were carried out by the aforementioned defendant law enforcement officer/agent in their capacities as law enforcement officers/agents and/or officials, under color of law.

107. The acts complained of herein were carried out by the aforementioned defendant law enforcement officer/agent in their capacities as law enforcement officers/agents and/or officials, pursuant to the customs, policies, usages, practices, procedures, and rules of the County of Nassau, the Nassau County Police Department, the Nassau County Sheriff's Department and the Nassau County District Attorney, all under the supervision of ranking officers of said Department.

108. The aforementioned customs, policies, usages, practices, procedures and rules include, but are not limited to, the following unconstitutional practices:

- a) fabricating evidence against innocent, erroneously arrested persons;
- b) arresting innocent, wrongfully apprehended persons and erroneously arresting them;
- c) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of criminal wrongdoing.

109. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following Civil Rights actions filed against the City of New York:

- **Jose Colon v. City of New York, et al.**, United States District Court, Eastern District of New York, 09 CV 08 (JBW);
- **Julio Diaz v. City of New York**, United States District Court, Southern District of New York, 08 CV 6399;
- **Frank Douglas v. City of New York**, United States District Court, Southern District of New York, 03 CV 6475;
- **Darnell Flood v. City of New York**, United States District Court, Southern District of New York, 03 CV 10313;
- **Theodore Richardson v. City of New York, et al.**, United States District Court, Southern District of New York, 02 CV 3651;
- **Phillip Stewart v. City of New York**, United States District Court, Southern District of New York, 05 CV 2375;
- **Benyamin Taylor v. City of New York**, United States District Court, Southern District of New York, 01 CV 5750;
- **Horace Taylor v. City of New York**, United States District Court, Southern District of New York, 03 CV 6477;
- **Angel Vasquez v. City of New York**, United States District Court, Southern District of New York, 05 CV 3552;
- **Alvin Williams v. City of New York**, United States District Court, Southern District of New York, 05 CV 4013.

110. The foregoing customs, policies, usages, practices, procedures and rules constituted a deliberate indifference to the safety, well-being and Civil and Constitutional Rights of the general public, and specifically of plaintiff herein.

111. The foregoing customs, policies, usages, practices, procedures and rules were the

direct and proximate cause of the Constitutional violations suffered by plaintiff as alleged herein.

112. The foregoing customs, policies, usages, practices, procedures and rules were the moving force behind, and proximate cause of, the Constitutional violations suffered by plaintiff as alleged herein.

113. As a result of the foregoing customs, policies, usages, practices, procedures and rules, plaintiff's liberty was restricted for an extended period of time, and plaintiff was put in fear for personal safety, was humiliated and subjected to handcuffing, and other physical restraints, was falsely and maliciously prosecuted and subjected to abuse of process, without permission, consent, probable cause, authority or privilege.

114. Defendant(s), collectively and individually, while acting under color of state law, were directly and actively involved in violating the Civil and Constitutional Rights of plaintiff.

115. Defendant(s), collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate law enforcement officers/agents, and were directly responsible for the violation of plaintiff's Civil and Constitutional Rights.

116. All of the foregoing acts by defendant(s) deprived plaintiff of federally protected rights, including, but not limited to, the right:

- a. To not be deprived of liberty without due process of law;
- b. To be free from seizure and arrest without probable cause;
- c. To be free from unwarranted and malicious criminal prosecution;
- d. To be free from cruel and unusual punishment; and
- e. To receive equal protection under the law.

117. That, as a result of the foregoing, plaintiff sustained, and continues to sustain,

inter alia, loss of liberty, emotional distress, personal, psychological and bodily injuries, mental anguish, shock, fright, apprehension, severe humiliation and embarrassment, damage to her reputation and occupation, and deprivation of her Civil and Constitutional Rights, plaintiff's liberty was restricted for an extended period of time, and plaintiff was put in fear for personal safety, was humiliated and subjected to handcuffing, and other physical restraints, was falsely and maliciously prosecuted and subjected to abuse of process, without permission, consent, probable cause, authority or privilege.

118. That, the foregoing was due to the willfulness, unlawfulness, negligence and/or carelessness of the defendant(s), their agents, servants and/or employees in the operation, management, maintenance, supervision and control of said police department, and negligent hiring and/or retention of the aforesaid defendant law enforcement officers/agents, without any culpable conduct on the part of the plaintiff herein.

119. As a result of the foregoing, plaintiff is entitled judgement against defendant(s) for damages in a sum exceeding the monetary jurisdiction of all lower courts, individually and collectively, and demands judgment against defendant(s) commensurate with same.

WHEREFORE, plaintiff demands judgment against the defendant(s) in accordance with the above allegations on the First Cause of Action in a sum exceeding the monetary jurisdiction of all lower Courts; on the Second Cause of Action in a sum exceeding the monetary jurisdiction of all lower Courts; on the Third Cause of Action in a sum exceeding the monetary jurisdiction of all lower Courts; on the Fourth Cause of Action in a sum exceeding the monetary jurisdiction of all lower Courts; on the Fifth Cause of Action in a sum exceeding the monetary jurisdiction of all lower Courts; on the Sixth Cause of Action in a sum exceeding the monetary jurisdiction of all lower Courts; and prays for relief commensurate therewith; together with such other and further relief deemed just, fair and equitable, and

legal fees, costs and disbursement of prosecuting this action.

Dated: Brooklyn, New York
August 13, 2018

Yours, etc.,

LAW OFFICE OF KAPLAN & KAPLAN

By: 

Cary H. Kaplan, Esq.

Attorneys for Plaintiff

186 Joralemon Street, Suite 1202

Brooklyn, NY 11201

(718) 596-8800

Our File No.: 54862

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
COUNTY OF KINGS) ss.:

CARY H. KAPLAN, being duly sworn, deposes and says; that he is the attorney for Plaintiff in the within action; that he has read the foregoing COMPLAINT and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged on information and belief; and, that as to those matters he believes it to be true.

Deponent states that the reason he makes this verification is, that Plaintiff resides in a county other than the one in which deponent and Plaintiff's attorney maintains his office; and deponent further states that the sources of his information and belief are from conversations with the Plaintiffs and/or from the memoranda, documents, reports and other related records in the file of this action, which file is in your deponent's possession.


CARY H. KAPLAN

Sworn to before me this
14 day of Aug, 2018.


NOTARY PUBLIC

TRICIA DELSEN
NOTARY PUBLIC, State of New York
No. 01DE5035730
Qualified in Kings County
Commission Expires November 7, 2018